

25NNCV08460 25NNCV08460

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-17

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Case Number: 25NNCV08460 Hearing Date: July 17, 2026 Dept: D

TENTATIVE RULING

Calendar: 7

Date: July 17, 2026

Case No: 25NNCV08460 Trial Date: Not yet set

Case Name: Britecap Financial, LLC v. Guel, et al.

MOTION TO DEEM RFAS ADMITTED

[CCP § 2033.280]

Moving Party: Plaintiff, Britecap Financial, LLC

Responding Party: Defendant, Jose Guel, an individual dba JRG Transportation

RELIEF REQUESTED:

Deem the requests for admissions propounded by Plaintiff on Defendant Jose Guel to be admitted.

CAUSES OF ACTION: from Form Complaint

1) Common Count

2) Common Count

3) Common Count

4) Breach of Contract

SUMMARY OF FACTS:

Britecap Financial, LLC ("Plaintiff") alleges that on June 18, 2025, Plaintiff and Jose Guel, an individual dba JRG Transportation, ("Defendant") entered into a business loan agreement. Plaintiff alleges that Defendant breached the agreement and is indebted to Plaintiff in the amount of \$46,561.98.

ANALYSIS:

A discovering party may make a motion to deem as admitted any unanswered requests for admission or any requests answered in a late or unverified response. (CCP § 2033.280, subd. (b); CCP, § 2033.240, subd. (a) [RFA responses must be signed by responding party under oath]; Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636 [unsworn response to RFAs is treated like no response].) These requests are not automatically deemed admitted; the discovering party must make the motion. (CCP, § 2033.280, subd. (b).)

To establish this ground, a movant must show:

(1) Proper service (CCP, § 2033.070 [requests for admission]);

(2) Expiration of the deadline for the initial response 30 days after service or on date agreed to by parties (CCP, § 2033.250, subds. (a), (b) [requests for admission]); and

(3) No timely response. (CCP, § 2033.280, subd. (b) [requests for admission])

A court must deny a motion to compel initial discovery where the discovery sought is outside the scope of discovery. (CBS, Inc. v. Superior Court (1968) 263 Cal.App.2d 12, 19; CCP § 2017.010 [scope of discovery].)

The RFAs were served via mail on February 20, 2026. (Blanda Decl. ¶ 2, Ex. 1) The deadline to respond was 30 days after service, plus five days for service via mail. (CCP § 1013 subd. (a).) Thus, responses were due on March 25, 2026. As of the date of the hearing on this motion, there is no evidence before the Court that Defendant has responded to the discovery requests.

Thus, the Motion is GRANTED.

RULING:

Plaintiff's Motion to Deem Requests for Admissions Admitted is GRANTED. The admissions are hereby deemed ADMITTED as truth.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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